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CASE #	CASE NAME	HEARING NAME
CVRI2306038	WALTHOUR VS BELTRAN	MOTION TO TAX COSTS

Tentative Ruling: The Court GRANTS the motion, in part, and taxes \$6,511.17 in costs (\$617.50 in expert witness fees and \$5,893.67 in travel costs).

Factual / Procedural Context:

Nicole Walthour and Makalya Walthour (through her guardian ad litem Flint Walthour) (collectively “Plaintiffs”) brought this lawsuit against Jesus Herminio Rivera Beltran (“Beltran”) and JRB Interstate, Inc. (collectively “Defendants”). Plaintiffs contend they were traveling in a vehicle that was struck by a vehicle driven by Beltran. JRB Interstate, Inc., is alleged to be Beltran’s employer and owner of the vehicle. Plaintiffs allege that Beltran made an unsafe lane change. The complaint contains one cause of action for negligence. The matter went to trial. The jury returned a verdict on 4/1/26, in Defendants’ favor. Plaintiffs recovered nothing. Defendants filed a memorandum of costs on 4/17/26.

Plaintiffs move to tax costs sought by Defendants, contending that the CCP § 998 offers were not proper. As such, they assert that Defendants are not entitled to expert witness costs. They assert that even if the CCP § 998 offers were proper, the amount sought is not supported or reasonable. They assert that \$4,167.50 in model, enlargement, and photocopy fees should be taxed because they were not necessary or reasonable. They argue that travel costs are not specifically recoverable and are not reasonable.

In opposition, Defendants contend that the CCP § 998 offers were proper, and all fees sought are reasonable and were necessary for litigation.

As of 6/30/26, no reply had been filed.

Analysis

A “prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (CCP §1032(b).) A prevailing party is “the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor the defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (*Id.* at (a)(4).)

CCP §1033.5 provides a list of costs that are allowable and those that are not. While certain costs are allowed, they still must be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” in order to be recovered. (CCP §1033.5(c)(2).) CCP §1033.5(c)(4) provides that any items not identified as allowable and not specifically identified as prohibited, may be permitted at the court’s discretion.

In ruling on a motion to tax costs, the court must first determine “whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking said expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

Under CCP § 998(c)(1), if a defendant makes a CCP § 998 offer that is not accepted by the plaintiff and the plaintiff fails to obtain a more favorable judgment, the plaintiff cannot recover their postoffer costs and must pay the defendant’s costs from the time of the offer. Additionally, the court has discretion to award the defendant’s postoffer costs for the services of their expert witnesses in a reasonable sum. (CCP § 998(c)(1).) Postoffer costs are excluded from the amount used to determine whether plaintiff obtained a more favorable judgment.

CCP § 998 Offers: Plaintiffs contend the CCP § 998 offers are improper because the inclusion of the requirement that the entire action be dismissed meant that the Plaintiffs could not separately accept the CCP § 998 offers and the requirement in the offers that no judgment be entered directly contradicts CCP § 998. Plaintiffs point to *Meissner v. Paulson* (1989) 212 Cal.App.3d 785, 791, to support their argument that the dismissal language is improper. Therein, the court stated: “only an offer made to a single plaintiff, without need for allocation of acceptance by other plaintiffs, qualifies as a valid offer under section 998.” Plaintiffs argue that the CCP § 998 offers required the acceptance of both Plaintiffs because they both required a request for dismissal from both Plaintiffs. However, this interpretation of the CCP § 998 offers does not appear reasonable, and Plaintiffs do not offer any authority where similar language was interpreted this way.

Two separate CCP § 998 offers were propounded on the Plaintiffs. Each offer identified the plaintiff it pertained to. Neither referred to both plaintiffs. On the first page of each offer, it specifically identifies the plaintiff, the sum of money being offered, and specifically states that the sum is being offered in exchange for the dismissal of the “plaintiff’s complaint.” Not the Plaintiffs’ complaint. The second page does state that “plaintiff’s counsel will execute and deliver to counsel for defendants, a Request for Dismissal of the entire action, without prejudice.” However, based on the information set forth on the first page of the offer, it appears a reasonable interpretation of this language is a request for dismissal of the entire action as to the applicable plaintiff. “[L]anguage in a contract must be interpreted as a whole, and in the circumstances of the case, and cannot be found to be ambiguous in the abstract. Courts will not strain to create an ambiguity where none exists.” (*Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 18-19.) Read as a whole, the offers only appear to require that the applicable plaintiff dismiss their entire lawsuit, not that both Plaintiffs are required to dismiss their lawsuit in order for the offer to be accepted. As such, Plaintiffs’ argument about the dismissal language lacks merit.

Plaintiffs also assert the CCP § 998 offers are improper because they require that the Plaintiffs dismiss the lawsuit and not allow judgment to be entered. CCP § 998 offers calling for a dismissal instead of a judgment have been allowed. (*American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1054-1055.) Plaintiffs cite to no contrary authority. The Court denies the motion as to expert witness fees.

Expert Witness Fees: Plaintiffs contend that the amount of expert witness fees sought are unreasonable. Defendants have provided invoices to support \$93,060.75 of the \$93,678.25 sought. No reply has been filed attacking the amount sought. Nothing on its face of the invoices provided seems inappropriate. Plaintiffs do not dispute that all the witnesses at issue testified at trial. They appear to assert that these individuals were not necessary at trial. However, based on Plaintiffs' own opposition, the witnesses were experts regarding how the accident happened (reconstructionist) and the extent of Plaintiffs' injuries. All these witnesses would have been relevant. The court taxes the expert witness amount by \$617.50 (the difference between the amount sought in the memorandum of costs and the invoices provided in opposition).

Costs for Models, Enlargements, and Photocopies: Plaintiffs challenge this amount because there are no invoices to support the amount sought. Defendants provide invoices supporting more than \$4,274.60 in costs. The Court denies this request.

Other Costs: Plaintiffs are correct that the \$5,893.67 in "other" costs for travel are not expressly allowed under CCP § 1033.5. Plaintiffs assert that these costs are overhead costs that should not be imposed upon Plaintiffs. Defendants' counsel is located in Pasadena; if they were local, they would not be seeking these costs. No evidence has been provided as to why counsel from Pasadena is being used. The Court GRANTS the motion as to these fees.